

25STCV07062 25STCV07062

County: los-angeles

Division: Civil Law and Motion

Department: 516

Hearing date: 2026-08-17

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C516%2C08%2F17%2F2026

Source SHA-256: 9b9ce1face1302c25d6cf341dbf2782f8428fb596fca4df527355ec3d1d08a7c

Case Number: 25STCV07062 Hearing Date: August 17, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: August 17, 2026

Case Name: Munoz v. General Motors LLC

Case

No.: 25STCV07062

Matter: Motion to Stay of Proceedings

Moving

Party: Plaintiff Jorge Munoz

Responding Party: Defendant General Motors LLC

Tentative

Ruling: Plaintiff Jorge Munoz's

motion is denied.

Plaintiff

Jorge Munoz ("Plaintiff") filed his action against General Motors, LLC ("Defendant") and Does 1 through 10. The Second Amended Complaint ("SAC") alleges five causes of action against Defendant for: (1) violation of Civil Code section 1793.2, subdivision (d); (2) violation of Civil Code section 1793.2, subdivision (b); (3) violation of Civil Code section 1793.2,

subdivision (a)(3); (4) breach of implied merchantability under Civil Code sections 1791.1, 1794, and 1795.5; and (5) fraudulent inducement-concealment. Plaintiff alleges that on June 28, 2018, Plaintiff purchased a 2018 Chevrolet Silverado 1500 vehicle identification number 3GCPCREC1JG377396 ("Subject Vehicle") that was manufactured by Defendant.

On July 28, 2026, the Court sustained Defendant's demurrer with leave to amend as to the first, second, third, and fifth causes of action. The Court sustained Defendant's demurrer without leave to amend as to the fourth cause of action.

Plaintiff moves to stay the proceedings. Defendant opposes.

Legal Standard

"Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency." (Freiberg v. City of Mission Viejo (1995) 33 Cal.App.4th 1484, 1489.) They also have inherent powers to manage and fashion procedures to control litigation and ensure the orderly administration of justice. (Cottle v. Superior Court (1992) 3 Cal.App.4th 1367, 1376-79; see also Code Civ. Proc., § 128, subd. (a)(3) and (a)(5).)

Analysis

Plaintiff moves to stay the proceeding pending the Second District Court of Appeal's resolution of Price v. General Motors (B353231, app. pending).

Plaintiff argues that the Court should stay the present action because Price "will decide a novel legal issue that is implicated in this case: whether a manufacturer's post-filing election into the Song-Beverly Act's new procedural regime can retroactively time-bar a complaint that was already on file when the new statutes of repose and limitations took effect." (Mot., 3:8-11.) Plaintiff contends that if the Court of Appeals decides in favor of Plaintiff, the Court and parties will be expending a considerable amount of time to address an issue

that the Court of Appeals will decide on.

"[A] court

ordinarily has inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice." [Citation.] As the court in *Landis v. North American Co.* (1936) 299 U.S. 248, 254, 57 S.Ct. 163, 81 L.Ed. 153 explained, "the power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants." (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 141.)

The Court

finds that Plaintiff has not established that granting the stay is to accommodate the ends of justice. Plaintiff specifically states:

(For this reason, plaintiff's counsel intends to file similar stay motions in all cases potentially implicating the question of whether a manufacturer's post-complaint election can retroactively time-bar Song-Beverly claims.)

(Mot., 4:21-23.)

Plaintiff

has not established or presented any argument as to how this stay is for the benefit of the Court or Defendant. It appears the only party that benefits is Plaintiff. The Court declines to exercise its inherent power to stay the proceedings for an unspecified period where only Plaintiff reaps the benefits. At this time, the Court will enforce the laws as they exist.

Thus, the

Court denies Plaintiff's motion to stay the proceedings.

Conclusion

Plaintiff's

motion to stay the proceedings is denied.